



Procedure No: EXP202401529 (PS/00234/2024)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following,

BACKGROUND

FIRST: On 28/12/23, A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity FEDERAL NAJANAJANA, S.L. (commercial name YOUHOMIEY) with CIF: B88064050 (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant are as follows:

"On August 9, 2023, I received a message via WhatsApp from one of the employees of the company Youhomey making me a commercial proposal for the management of rental apartments. I understand that my data (name, surname, and phone number) were taken from a rental advertisement I had posted online. Later, on August 16, 2023, they sent me the same commercial proposal again. Subsequently, yesterday, December 27, 2023, I received another WhatsApp message from this company from another employee with the same commercial proposal, with the difference that I no longer have any advertisement posted online since September 2023."

Along with the complaint, the following documentation is attached:

- Screenshot of the WhatsApp received from the phone number ***PHONE.1, with the following message:

- o "Hello, I am B.B.B. from Youhomey, I am writing to you about the rental apartment, we offer you a management contract for a year or more (AT NO COST); a monthly payment on time, whether or not the apartment is rented. I am available to schedule a VISIT and explain how we work, if you have any concerns, do not hesitate to write to me. Have a nice day. ? WE ARE NOT A REAL ESTATE AGENCY. For more information visit our link: youhomey.com/ser-propietario."

- Screenshot of the WhatsApp message received on August 16:

- o "Hello, I am B.B.B. from Youhomey, do not hesitate to contact me when your apartment is free. We offer you a management contract for a year or more (AT NO COST); a monthly payment on time, ..."

- Screenshot of the WhatsApp received from the phone number ***PHONE.2, with the following message:

- o "Hello, I am C.C.C. from Youhomey, do not hesitate to contact me when your apartment is free. We offer you a management contract for a year or more (AT NO COST); a monthly payment on time, whether or not the apartment is rented. If the apartment is not furnished, we will furnish it, and after the year, those furnishings will remain for the owner. If you have any concerns, write to me. Have a nice day. WE ARE NOT A REAL ESTATE AGENCY."

SECOND: On 31/01/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report back, within one month, on the matters raised in the complaint.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) through electronic notification, was received by the responsible party within the availability period, on 02/02/24.

THIRD: On 28/02/24, the respondent sent a written response to this Agency, in which they state the following:

- That when an advertisement is published on the "Idealista" portal, it is necessary to accept the terms and conditions of that website, as well as its privacy policy:

<https://www.idealista.com/ayuda/articulos/politica-de-privacidad/#3>. Accessing that link, we see how the website informs that when using the Idealista website, users are required to provide a series of personal data, including the phone number.

- That the person who filed the complaint published an advertisement for their rental property on the Idealista website, consenting to and accepting the processing of their personal data, as well as its transfer to third parties for commercial purposes.
- That the advertisement allowed access to the complainant's phone number, to engage in direct conversations regarding the rental of the property published by them on the Idealista portal, and therefore, accepting the terms and conditions of that website.
- That in the "Privacy Policy" of the Idealista website, it is also stated that the personal data provided by them may be sent to third companies in the real estate sector (such as our company), energy companies, insurers, etc., so that they can send commercial communications about their products or services:
 - o "(...) If you are a Registered User, Private Client, or Professional Client, we may communicate your data to third companies so that they can contact you by phone, SMS, or email (in case you have provided any of these data), in order to..."

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you may receive commercial communications about their products and services. In particular, we will require your consent to:

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 - Communicate your data to third parties in the real estate, energy, insurance, real estate agencies, consulting, appraisal, and other companies that do not belong to the idealista group so that they can send you commercial communications.
- o
 - Communicate your data to other companies within the same idealista group (mentioned above), for the purpose of sending you information related to their product and service offers, news, and other commercial communications.

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They understand that the claimant accepted the terms and conditions of the Idealista website regarding privacy and the use of their personal data, which implied accepting that companies dedicated to the real estate sector could contact him directly to offer their services.

FOURTH: On 28/03/04, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint submitted, in accordance with Article 65 of the LOPDGDD.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities in Article 58.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, on the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data (GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

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It is noted that in the "Privacy Policy" of the website

<https://www.idealista.com/ayuda/articulos/politica-de-privacidad/> it can be read, among other issues, the following:

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 - 3. Purposes of the processing and legitimization: For what purpose, and on what legal basis, can we process your data? (...)
 - 3D) By the express consent you provide us: If you expressly consent, we will process your data for the following purposes: If you are a User or Registered User, in case you select a search and want the advertiser to contact you, we will communicate your identifying and contact data to the corresponding Private Client or Professional Client. We may also communicate to the advertiser the search filters you applied to find their property. (...)
 - If you are a Registered User, Private Client, or Professional Client, we may communicate your data to third-party companies so that they can contact you by phone, SMS, or email (in the case that you have provided any of these data), in order to send you commercial communications about their products and services. In particular, we will require your consent to: 0 Communicate your data to third parties in the real estate, energy, insurance, real estate agencies, consulting, appraisal, and other companies that

do not belong to the idealista group so that they can send you commercial communications. o Communicate your data to other companies within the same idealista group (mentioned above), for the purpose of sending you information related to their product and service offers, news, and other commercial communications. (...)

In any case, idealista will request specific consent for each of the purposes we have just indicated. In particular, for the case of commercial communications, if you are a Registered User or Private Client who publishes on the portal, you will provide this authorization by checking the box that appears in the registration form or in the listing setup section that unfolds in the "Settings." If you are a Professional Client, by checking the corresponding box when you contact us or when contracting any of our services. (...)

SIXTH: On 13/06/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity FEDERAL NAJANAJANA, S.L., in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 21 of the LSSI, classified as minor in Article 38.4.d) of that regulation. In the opening agreement, it was determined that the sanction that could correspond, given the existing evidence at the time of the opening of the file, would amount to a total of 2,000 euros (two thousand euros).

SEVENTH: The aforementioned opening agreement was notified in accordance with the rules established in the LPACAP, and the defendant submitted a written statement of allegations on 02/07/24, in which the following was stated:

FIRST.- The Opening Agreement of the Sanctioning Procedure against which these allegations are made is based on the classification of the conduct subject to the procedure on the fact that there is no record that the claimant provided their express consent for the sending of commercial communications; a fact that is classified in Article 21 of Law 34/2002, on Services of the Information Society and Electronic Commerce. In this regard, it is necessary to make two clarifications: 1. The conduct classified in the article whose violation is indicated in the Opening Agreement of the Sanctioning Procedure is: The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients of the same is prohibited.

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Consequently, the sending of advertising communications is only authorized in those cases where the recipient has previously requested or authorized them.

2.- In this context, the communications made by the defendant would only be covered by current legislation if the claimant had expressly authorized such communications on the Idealista website. However, as is logical, it is not the defendant's responsibility to prove whether the claimant authorized such communications with the Idealista website, as we must remember that the defendant is not Idealista, and therefore, simply cannot access such information.

Thus, requiring the defendant to prove whether the claimant authorized the sending of such communications would mean demanding the provision of impossible evidence, legally known as "diabolical proof," as it is evidence that is impossible for them to access.

Consequently, to determine whether the claimant indeed authorized such communications, it is only necessary to request the company Idealista (Idealista SAU) to inform whether the claimant accepted the terms, conditions, and privacy policy, in order to effectively verify whether they authorized such communications or not.

The opposite would mean reversing the burden of proof and requiring the defendant company to provide evidence that proves its innocence, instead of the claimant or the Instructor ultimately providing the necessary elements of proof to sufficiently demonstrate that the facts fall within the typified conduct; which generates evident defenselessness, in addition to a clear violation of the basic principle of the presumption of innocence, which is strictly and mandatorily applicable in the sanctioning administrative procedure.

SECOND.- Furthermore, we cannot forget that the now claimant acts as a user of an affiliate network (Idealista), which in turn acts as an intermediary between property advertisers and those interested in their rental/sale/marketing.

Thus, the advertiser is the owner of a property that they offer on the Idealista website for commercialization, having to carry out a subscription with the website itself in which, among other considerations, the conditions regarding personal data are established (to which this party has no access and cannot have access, as it is a relationship solely between Idealista and the claimant). However, we do not know what terms or conditions were agreed upon between the Idealista portal and the claimant, and it cannot be demanded from this party to provide it as "exculpatory evidence," as it is evidence of impossible access and, in any case, should be provided by the claimant themselves (burden of proof). And by virtue of the above, I REQUEST THIS AGENCY to consider this written statement of allegations as presented, to accept it, and, after the appropriate procedures, to agree to archive the file.

EIGHTH: On 10/10/24, a resolution proposal was made stating that the Director of the AEPD should proceed to sanction the entity, FEDERAL NAJANAJANA, S.L. (commercial name YOUHOMIEY), with CIF: B88064050, for the infringement of Article 21 of the LSSI, classified as minor in Article 38.4.d), with a sanction of 2,000 euros (two thousand euros).

The notification of the aforementioned resolution proposal was made in accordance with the rules established in the LPACAP, through electronic notification, with access to the content of the notification occurring on 14/10/24, as recorded in the file, and no response has been received to this resolution proposal.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First: The claimant has provided three screenshots of communications received through the WhatsApp messaging application, dated 09/08/23; 16/08/23, and 27/12/23, sent from the phone numbers ***PHONE.1 and ***PHONE.2, and signed by employees of the entity Youhomey.

In the messages, the claimant is offered management of the rental of their property published on the portal "el idealista" and includes promotional links directed to the official Youhomey website, with the entity responsible for that page being Federal Najanajana, S.L., with NIF: B88064050.

Second: The Idealista website, in its privacy policy, allows the transfer of personal data provided by registered users for commercial purposes to companies in the sector, provided that explicit consent has been given for this.

Third: The defendant argues that the claimant published an advertisement for their rental property on the "El Idealista" website, accepting the conditions regarding personal data protection included in its "Privacy Policy," but does not provide any evidence that it had, or obtained, the claimant's consent for receiving commercial communications.

LEGAL GROUNDS

I.

Competence.

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions established in the

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art. 43.1, second paragraph, of the LSSI and according to the provisions established in articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD.

Furthermore, article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II.

Summary of the facts and preliminary issues

The complainant stated in his complaint that on 09/08/23 he received a message via WhatsApp from Youhomey, proposing the management of an apartment he had for rent, suspecting that his personal data was obtained from the advertisement published on the portal "El Idealista." Subsequently, he received similar messages on 16/08/23 and 27/12/23, the latter when the advertisement was no longer active on the portal. He provided three screenshots of the messages received, sent from the phone numbers ***PHONE.1 and ***PHONE.2, signed by employees of Youhomey, which included promotional links directed to the official website of the responsible entity, Federal Najanajana, S.L., with NIF B88064050.

The respondent argued in its written allegations regarding the initiation of the file that, although article 21.1 of the LSSI requires prior and express authorization for the sending of commercial communications by electronic means, it cannot demonstrate such authorization as it is not responsible for the portal "El Idealista" and requested that the portal itself certify that the complainant accepted its terms and conditions, arguing that the contrary would violate the presumption of innocence and would constitute a "diabolical proof."

In the Proposal for Resolution, this Agency recalled that article 21.1 of the LSSI prohibits the sending of advertising communications without the express authorization of the recipient. Although the respondent claimed that the complainant's data was obtained from the Idealista portal and that the complainant had accepted its terms and conditions, it did not present evidence that the complainant granted specific consent for the sending of such commercial communications. Furthermore, the privacy policy of Idealista states that personal data may only be transferred to third parties for the sending of commercial communications with the express consent of the interested party, which was not evidenced in this case.

The central issue does not lie in the relationship between the complainant and the portal "El Idealista," but in how the respondent obtained and used the complainant's personal data for the sending of commercial communications. According to the privacy policy of the portal, the data may only be used for commercial purposes if the interested party consents.

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expressly. The respondent acknowledged having obtained the phone number directly from the claimant's advertisement on Idealista, which was intended to facilitate contacts related exclusively to the rental of the property. However, it used this data for commercial purposes, exceeding the legitimate objective of the advertisement, and it has even been confirmed that the last commercial message was sent when the claimant was no longer listed as an advertiser on the portal, which reinforces the lack of legal basis for such commercial communication.

In conclusion, the respondent has not proven the prior and express consent of the claimant for them to send commercial or advertising communications, thereby violating Article 21 of the LSSI.

III.

Classification of the infringement committed.

As we have seen in the previous section, the fact that the respondent sent advertising messages to the claimant without the latter having previously requested or expressly authorized them constitutes a violation of what is established in Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the

recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact data of the recipient and uses it to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

IV.

Sanction

The aforementioned infringement of Article 21 of the LSSI is classified as minor in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when such communications do not meet the requirements established in Article 21 and do not constitute a serious infringement.”

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According to what is established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

For its part, Article 40 of the LSSI establishes the criteria for determining the amount of the sanctions:

“The amount of the fines imposed shall be graduated according to the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of the commission of infringements of the same nature, when this has been declared by a firm resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of billing affected by the committed infringement. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

In accordance with these criteria, it is deemed appropriate to impose a sanction of €2,000 (two thousand euros) for the infringement of Article 21 of the LSSI, for sending advertising messages to the claimant without the latter having requested or expressly authorized them.

In accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been proven, the Director of the Spanish Agency for Data Protection, RESOLVES:

FIRST: TO IMPOSE on the entity FEDERAL NAJANAJANA, S.L. (commercial name YOUHOMY) with CIF: B88064050, for the infringement of Article 21 of the LSSI, classified as “minor” in Article 38.4.d), a sanction of €2,000 (two thousand euros).

SECOND: TO NOTIFY this resolution to FEDERAL NAJANAJANA, S.L.

THIRD: TO WARN the sanctioned party that the imposed sanction must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. or, otherwise, it will be collected in the executive period.

Upon receiving the notification and once enforceable, if the date of enforceability falls between the 1st

and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day.

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Finds that between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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